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Case Name: *Cavalry SPV I, LLC, as Assignee of Citibank N.A. v. Daljeet Kaur, et al.*

Case No.: 25CV460129

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Cavalry SPV I, LLC, as assignee of Citibank N.A., (“Plaintiff”) moves for Judgment on the Pleadings in favor of Plaintiff on the grounds that the Complaint states facts sufficient to constitute a cause of action against Defendant Daljeet Kaur (“Defendant”) and the Answer does not state facts sufficient to constitute a defense to the Complaint. Notice of Motion (the “Motion”) at 1:3-8 (filed: Oct. 15, 2025).

The Motion came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On March 3, 2025, Plaintiff filed a Complaint with a single cause of action for breach of contract against Defendant for damages in the amount of \$3,859.43. Complaint at ¶¶ 5-17 (filed March 3, 2025). Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant.

Defendant filed an Answer on March 7, 2025, which does not deny any allegation or claim in the Complaint. Answer (filed March 7, 2025). Having reviewed the Answer, the Court finds that it *does not* state facts sufficient to constitute any defense to the Complaint.

Code of Civil Procedure Section 438(a) authorizes a Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, “the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” C.C.P. § 438(a).

Here, as the Court has found that (1) the Complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant for damages in the amount of \$3,859.43, and (2) Defendant’s Answer does *not* state facts sufficient to constitute any defense to the Complaint, Plaintiff’s Motion under Section 438(a) is **GRANTED**.

More specifically, as the Court reads Defendant’s Answer to admit that Defendant owes the credit-card debt claimed by the Complaint, there is no reasonable possibility that this deficient Answer (which fails to state facts sufficient to constitute any defense) could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND**.

Defendant does not argue otherwise. Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Given this Order Granting Plaintiff’s Motion without leave to amend, Plaintiff is entitled to Judgment now in the amount of damages set forth in the Complaint of \$3,859.43, plus Plaintiff’s costs incurred for bringing this Motion (as set forth in the accompanying Declaration of attorney Jomari Lucero at ¶10, filed Oct. 15, 2025) in the amount of \$314.55 (which equals the \$181.00, service of process fee of \$73.55, and Motion fee in the amount of \$60.00). Hence, Judgment is entered now in favor of Plaintiff and against Defendant for the total amount of \$4,173.98 (which equals \$3,859.43 in damages plus \$314.55 in costs).

Conclusion and Order

For the reasons set forth above, Plaintiff’s Motion for Judgment on the pleadings for damages in the amount of \$3,859.43 as set forth in the Complaint plus costs in the amount of \$314.55 for a total amount of \$4,173.98 in favor of Plaintiff Cavalry SPV I, LLC, as Assignee of Citibank N.A., and against Defendant Daljeet Kaur, is **GRANTED WITHOUT LEAVE TO AMEND.**

SO ORDERED.

Date: June 10, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Judgment

IT IS SO ORDERED: This Court, having Ordered Judgment on the Pleadings and having good cause, renders Judgment as follows:

1. That Judgment be entered now against Defendant Daljeet Kaur, an individual, and for Plaintiff Cavalry SPV I, LLC, as Assignee of Citibank N.A.; and
2. Plaintiff Cavalry SPV I, LLC, as Assignee of Citibank N.A., shall recover from Defendant Daljeet Kaur, as damages, the principal balance of \$3,859.43, plus reimbursable costs in the amount of \$314.55, for a Total Judgment of \$4,173.98.

Date: June 3, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 3

Case Name: *Joel Weissbart v. General Motors, LLC, et al.*

Case No.: 25CV468818

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM” or “Defendant”) demurs to the Complaint filed by Plaintiff Joel Weissbart (“Plaintiff”) under Code of Civil Procedure Section 430.10(e) on the ground that Plaintiff cannot state his cause of action for breach of implied warranty because it is barred by the statute of limitations, and his fifth cause of action for fraudulent inducement-concealment fails because Plaintiff fails to sufficiently plead the essential elements of a fraud claim. Notice of Demurrer (the “Demurrer”) at 1:3-8 (filed: Oct. 16, 2025). Moreover, Defendant demurs on the ground that the fraud claim is barred by the economic loss rule, the independent tort principle, and the statute of limitations. *Id.* at 1:9-10.

The Demurrer came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On February 6, 2021, Plaintiff entered in to a “bumper to bumper” warranty contract with GM for a 2021, Cadillac Escalade, vehicle identification number 1GYS4FKL6MR245887(“Subject Vehicle”), which was manufactured and/or distributed by GM. (Complaint ¶¶ 6,7)

Before Plaintiff purchased the Subject Vehicle, GM knew that vehicles equipped with the 6.2L engine, as installed in the Subject Vehicle, suffered from one or more defects that resulted in loss of power, stalling, running rough, or engine misfires. (“Engine Defect”) GM acquired this knowledge through various sources of information, including but not limited to pre-production and post-production testing, consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM’s network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC ¶¶ 51, 57)

GM concealed the Engine Defects and instead implemented a strategy with its dealers where symptoms of the defect were ineffectively repaired but not the underlying cause. As a result of GM’s silence and inaction, Plaintiff was unaware that he was purchasing an unsafe and unreliable vehicle.(Complaint ¶¶ 65, 68, 69, 71)